

Gift charged with a contingent legacy.—Thus, if lands be devised to A. charged with a legacy to B. provided B. attain the age of twenty-one, should B. die without attaining that age, the devise has become absolute in A., and the will is to be read as if the legacy to B. had never been mentioned (*b*). So if the lands be given to A. charged with a legacy to B., and B. dies in the testator's lifetime (*c*).

Gift charged with a sum to be appointed, and the power not exercised.—The construction is the same, if lands be given to A. subject to and charged with any sum not exceeding 10,000*l.* to such persons, and in such manner as the testator shall appoint, and the power is either never exercised, or the execution of it is void (*d*): for here, as the testator confers the whole interest on the devisee, reserving the power, if he either abstain from executing the power, or appoint for an illegal purpose, he does not diminish that interest, but the heir is wholly disinherited (*e*).

Noel v. Lord Henley.—And where a testator had devised certain estates upon trust to sell, and out of the proceeds to pay 5000*l.* unto his wife, her executors and administrators, *in part satisfaction of the sum of 10,000*l.* secured to her by marriage settlement in case of her surviving him*, and to invest the residue upon certain trusts, and the wife died in the lifetime of the husband, so that the 10,000*l.* never became raisable, it was held that the 5000*l.* instead of resulting to the heir was included in the residue (*f*). The construction put upon the will was, that the whole fund was in the first instance given to the residuary legatees, subject to a charge of 5000*l.* to arise on a certain event, and that contingency having never occurred, the primary devise of the entirety was never divested (*g*).

(*b*) Tregonwell v. Sydenham, 3 Dow, 210, *per* Lord Eldon. Sprigg v. Sprigg, 2 Vern. 394, was decided on this principle; Cruse v. Barley, 3 P. W. 20, should have been decided the same way, but the point was not noticed. See Attorney-General v. Milner, 3 Atk. 112; Croft v. Slee, 4 Ves. 60.

(*c*) Sutcliffe v. Cole, 3 Drew. 185.

(*d*) Jackson v. Hurlock, 2 Eden, 263; Cooke v. The Stationers' Company, 3 M. & K. 262; Tucker v. Kayes, 4 K. & J. 339.

(*e*) Tregonwell v. Sydenham, 3 Dow, 213, *per* Lord Eldon.

(*f*) Noel v. Lord Henley, 7 Price, 241; S. C. Dan. 211, and 322.

(*g*) That the case was probably decided on this ground, see observations